

Form 60A.07

20

No.

Supreme Court of Nova Scotia
(Family Division)

[If taking a child into care before starting a child protection application.]

In the matter of [name of representative] , for agency [*Minister of Community Services or Mi'kmaw Family and Children's Services*] giving notice of taking a child into care under subsection 33(2) of the *Children and Family Services Act* before starting a child protection application

Between: [insert standard heading]

[name]

Applicant

and

[name]

Respondent[s]

Notice of Taking Into Care

Taking into care

I, [name] , as representative under the *Children and Family Services Act* for the applicant named above, have on this day taken into care the child, [name] , born on [date] , under the *Children and Family Services Act*. I believe on reasonable and probable grounds that the child is in need of protective services, and that the child's health and safety cannot be protected adequately otherwise than by being taken into care.

Child protection application will be made

The agency will, as soon as possible, start a child protection application in the Supreme Court (Family Division) to determine whether the child is in need of protective services under the *Act*. The agency relies on the following grounds:

- 1 [refer to section(s) in subsection 22(2) in the *Act*] ;
- 2 ;
- 3 [or such other grounds as may be included in the child protection application] .

Motion will be made for order at interim hearing

The *Children and Family Services Act* provides that, as soon as practicable, but in any event no later than five days after the day the notice of application is filed to determine whether a child is in need of protective services or the child is taken into care, whichever is earlier, the agency must make a motion for an order at an interim hearing to determine if there are reasonable and probable grounds to believe that the child is in need of protective services.

The agency undertakes to make the motion within the time stated above and to schedule the interim hearing.

Counsel

You may retain and instruct counsel to represent you at the hearing. If you are unable to afford a lawyer, a lawyer may be available through the local Legal Aid office. If you wish to be represented by a lawyer, you should contact a lawyer as soon as possible.

Signature

Signed [date] , 20

Signature of representative
Print name: